

TENTATIVE RULING

Case: Herbalshotz LLC et al. v. Vaidya et al.
Case No. CV2025-3516

Hearing Date: July 10, 2026 **Department Fourteen** **9:00 a.m.**

Motion to compel:

Plaintiff Herbalshotz LLC’s unopposed motion to compel compliance with subpoena for production of business records to nonparty Arman Estates, LLC, (“Arman Estates”) is **GRANTED**. (Code Civ. Proc., §§ 1987.1, 2020.410, 2025.480; Hughes Decl., ¶¶ 2-9, Exhs. A-D.) The Court finds that Arman Estates failed to comply with the deposition subpoena for production of business records served on its agent for service of process, on February 27, 2026. (Code Civ. Proc., §§ 1987.1, 2025.480; see *In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1286; Hughes Decl., ¶¶ 2-9, Exhs. A-D.)

Plaintiff’s request for monetary sanctions against Arman Estates is **GRANTED IN PART** in the amount of **\$705.00**. (Code Civ. Proc., §§ 1987.2, 2023.010, and 2023.030; Hughes Decl., ¶ 10-13.) The Court declines to award attorneys’ fees as requested for the time Sebastian Robles (“Robles”) spent working on this matter. (Hughes Decl., ¶¶ 10, 14.) Robles did not submit a separate declaration regarding the hours he spent working on this matter. The statements by Christopher D. Hughes regarding the time Robles spent working on this matter are hearsay. (Evid. Code, § 1200; Hughes Decl., ¶¶ 10, 14.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312, or further notice is required.

Motion to strike:

Defendants Aditya Vaidya, Arshdeep Khinda, Rupinder Pama, Shivdeep Singh Bhinder, and Simran Vaidya’s (collectively, “defendants”) motion to strike punitive damages from plaintiffs Herbalshotz LLC and Keerut Dhesi’s (collectively, “plaintiffs”) first amended complaint (“FAC”) is **GRANTED WITH LEAVE TO AMEND**. (Code Civ. Proc., §§ 435, 436; *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.) As an initial matter, plaintiffs concede that punitive damages are not recoverable for their unfair business practices claim brought pursuant to Business and Professions Code section 17200, and that they do not seek punitive damages on that claim. (Opp., pp. 8, 11 [“[p]laintiffs acknowledge that relief on the unfair business practices claim is limited to injunctive relief and restitution”].) As to the remaining claims, the Court finds that the FAC, read as whole, fails to allege facts sufficient to support a prayer for punitive damages against defendants. (Code Civ. Proc., § 3294, subds. (a), (c); *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1042 [if the complaint is “devoid of any factual assertions supporting a conclusion [that defendant] acted with oppression, fraud or malice,” then punitive damages are properly stricken from the complaint]; *Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872 [a complaint’s conclusory characterization of defendant’s conduct as intentional, willful, and fraudulent is patently insufficient statement of oppression, fraud, or malice within the meaning of section 3294]; see *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6; FAC.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Demurrer:

On the Court's own motion, cross-defendants Keerut Dhesi and Isha Dhesi's demurrer to cross-complainants Aditya Vaidya, Shivdeep Bhinder, Rupinder Pama, and Arshdeep Khinda's first amended cross-complaint is **CONTINUED** to **September 17, 2026**, at 9:00 a.m. in Department Fourteen. The Court finds that the meet and confer process was insufficient. (Code Civ. Proc., § 430.41, subd. (a)(4); Hughes Decl., ¶¶ 2-3, Exhibit A.)

By **August 6, 2026**, the parties are **DIRECTED** to meet and confer, in person, by telephone, or by video conference, regarding the issues raised in cross-defendants' demurrer. (Code Civ. Proc., § 430.41; *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3 ["trial courts are not required to ignore defects in the meet and confer process" and retain the "discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort"].)

By **August 20, 2026**, cross-defendants **SHALL** file and serve a declaration regarding the parties' meet and confer efforts and identify the remaining issues for the Court's determination. If there are no remaining issues, cross-defendants are **DIRECTED** to request that the September 17, 2026, hearing be vacated.

By **September 3, 2026**, cross-complainants **SHALL** file and serve a responsive declaration, unless cross-defendants request that the hearing be vacated.

TENTATIVE RULING

Case: Vaidya v. Dhesi et al.
Case No. CV2026-0221

Hearing Date: July 10, 2026 **Department Fourteen** **9:00 a.m.**

Demurrer:

The Court rules on defendants Rajpreet Dhesi, Anita Dhesi, Keerut Dhesi, (collectively, “Deshi defendants”) and Blueberry Trading, LLC’s (collectively, “defendants”) demurrer to plaintiff Aditya Vaidya’s (“plaintiff”) complaint as follows:

- Defendants’ demurrer on the grounds that plaintiff’s complaint fails to state facts sufficient to support an alter ego theory of liability against the individual Deshi defendants is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that plaintiff has stated facts sufficient to allege an alter ego theory of liability. (*Kao v. Joy Holiday* (2020) 58 Cal.App.5th 199, 205-207; *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 415 [“[t]o recover on an alter ego theory, a plaintiff . . . must allege sufficient facts to show a unity of interest and ownership, and an unjust result if the corporation is treated as the sole actor”]; Complaint ¶¶ 18-21.)
- Defendants’ demurrer to the first cause of action for breach of agreement is **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e); *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.) The Court finds that plaintiff’s complaint fails to state facts sufficient to establish that he, an individual, has standing as a third-party beneficiary. (Civ. Code, § 1559; *Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817, 826–827; *Pillar Project AG v. Payward Ventures, Inc.* (2021) 64 Cal.App.5th 671, 677; *Levy v. Only Cremations for Pets, Inc.* (2020) 57 Cal.App.5th 203, 212; *Jensen v. U-Haul Co. of California* (2017) 18 Cal.App.5th 295, 301; *Otay Land Co., LLC v. U.E. Limited, L.P.* (2017) 15 Cal.App.5th 806, 855; Complaint, ¶¶ 12-14, 29-38, Exhs. A, B.)
- Defendants’ demurrer to the second cause of action for fraud is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that plaintiff has stated facts sufficient to constitute this cause of action (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638; see also *Agricultural Ins. Co. v. Superior Court* (1999) 70 Cal.App.4th 385, 402; *Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384; Complaint ¶¶ 39-48.)
- Defendants’ demurrer to the fourth (failure to provide meal and rest periods), fifth (failure to pay earned wages and overtime compensation), sixth (waiting time penalties), seventh (failure to provide accurate wage statements), eighth (violation of Unfair Competition Law), and ninth (quantum meruit) causes of action are **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e); *Aubry, supra*, 2 Cal.4th at p. 967.) The Court finds that plaintiff’s complaint fails to state facts sufficient to establish the existence of an employment relationship necessary to support the fourth, fifth, sixth, seventh, and eighth causes of action, and further fails to allege facts of either an express or implied request for services to support the ninth cause of action. (Lab.